

OBSIDIAN WATCH GROUP

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FOR SENATOR BLACKBURN'S HEALTH POLICY STAFF Re: docket HHS-OASH-2026-0232, comment period closes 10 September 2026

THE ASK, IN ONE SENTENCE

Every compound the federal government has scheduled in this action sits on one chemical scaffold; there is a second scaffold in the same plant that nothing covers, and two companies have already patented how to manufacture it.

THE FOUR FACTS, ALL INDEPENDENTLY VERIFIABLE

1. **WHAT IS COVERED.** The proposed rule covers 7-hydroxymitragynine above a threshold. The temporary order effective 26 August 2026 covers mitragynine pseudoindoxyl, MGM-15 and MGM-16. All four are structural relatives of mitragynine. One scaffold.
2. **WHAT IS NOT.** 9-hydroxycorynantheidine sits on the corynantheidine scaffold and is covered by nothing. It appears in no federal docket document, no Senate lobbying disclosure and no FDA adverse event report. Every one of those searches was run against a control that returned results.
3. **A STATE ALREADY CAUGHT IT.** Florida's emergency rule of June 2026 names 9-hydroxycorynantheidine among seven covered compounds. The federal instruments issued weeks later do not.
4. **IT CAN ALREADY BE MANUFACTURED.** Two patent families, both with priority dates in late 2023:

EP 4 538 367 (Mitradyne Corporation), US application 18/891,491
Claim 5 the enzyme producing 9-hydroxycorynantheidine
Claim 6 the enzyme producing 7-hydroxymitragynine
Claim 8 the route: corynantheidine to 9-hydroxycorynantheidine to mitragynine
Claim 11 the system is cell-free, so no plant is required

US 2025/0179544 (CB Therapeutics), recombinant-cell production of corynanthe-type alkaloids, names the compound in its specification

Claims 5 and 6 are consecutive. The same document claims the enzyme for the scheduled compound and the enzyme for the unscheduled one.

Claim 8 is the important one. The uncovered compound is an INTERMEDIATE on the route to mitragynine. Any facility making mitragynine enzymatically passes through it and can stop there. The assumption that there is too little of it in the leaf to matter is already obsolete.

THREE QUESTIONS FOR THE DEPARTMENT

1. Did the scientific and medical evaluation consider mu-opioid-active alkaloids of *Mitragyna speciosa* outside the mitragynine scaffold, and if so, on what basis were they excluded?
2. Was the scope of the action set on how abundant a compound is in the plant, or on whether it can be manufactured? Those are different questions and only one of them still makes sense.
3. Will any subsequent notice publish the full list of alkaloids considered and the disposition of each?

These are already before the Department. Filed on the docket as comment mtc-q9zv-dase, 28 August 2026, alongside mtc-56yj-nmij and mtc-6i56-o6pm.

WHAT WE ARE NOT ASSERTING

No products containing this compound have been located for sale and we do not claim a market exists. We do not claim potency equivalent to 7-OH; reported mu-opioid affinity is weaker. Neither patent applicant has done anything wrong; both are legitimate biotechnology filings, neither states any intent to market this compound, and we found no connection between either and any party or official in this matter. We raise a gap in scope, not a finding of present harm.

ONE THING IN THE SENATOR'S FAVOR, WHICH SHE DID NOT ASK US TO LOOK FOR

We queried FEC records by contributor employer for every kratom company and trade association we could identify. None of the eleven signatories of the 18 March 2026 letter to Commissioner Makary appears as a recipient of any of it. Not Senator Blackburn, not Chairman Crapo, not one. We published that as plainly as everything else. An absence of records is not a certificate and employer fields are self-reported, and our finding says so.

WHAT WE ARE OFFERING

The entire case file, free, with no conditions and no credit required. Twenty-five documented findings, every exhibit hashed and dated, the patent analysis, the lobbying and contribution records, and all three federal comments.

github.com/jpuckett11/ObsidianGroup_CaseSevenfold

If a briefing is more useful than a repository, I will come to this office and walk through the primary documents. I will start with the parts of our own work that cut against our own theory, because there are several and you should know them before relying on any of it.

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